

Ireland's intelligence community is not short of competence

It is short of the legislative support and honest political debate which other nations take for granted.

SLIDE

As stated in the **2005 Act**, the Gardai are tasked with “protecting the security of the state” while through the **1954 Act** the Minister of Defence “may do all such things as seem to him necessary for the efficient military defence of the State” (**Government of Ireland, 1954; Government of Ireland, 2005**).

Although Garda National Crime and Security Intelligence Service is legislated as the "**security services**", in practice IMIS ICCW NSAC are the defensive intelligence arms of the state

While Ireland's structures are internationally-comparable, the absence of a national security strategy cripples “direction” - which is key to the intelligence cycle

A notable lacuna exists pertaining to the collection of metadata

Furthermore, Ireland has no dedicated civil service career stream or National Security Adviser role – unlike the UK system we otherwise follow

While Ireland aligns to **Huntington's 1957** civil-military separation, Ireland's secretive approach to intelligence is immature.

It is in contrast to other states' **Janowitzian (1960)** approach to national security

This hinders the work of capable professionals.

1:30 = 1:30 SLIDE

To prove our assessment, we shall do the following:

1. Elucidate Ireland's intelligence structures.
2. Analyse key legislation and identify lacunae.
3. Analyse key contemporary threats and the approach of comparable nations
4. Explore EU data collection law

We note that this presentation cannot dwell on our analytical outputs.

Hence graphical depictions of the structures which are *quantitative* to our research are used in a *supplementary* and *qualitative* fashion for our presentation.

1:30 + 0:30 = 2 SLIDE

Unlike other states, Ireland doesn't publish a map of its Intelligence Community.

For the syndicate, this was a key deficiency for us to clarify before addressing the research question.

1:30 + 0:30 + 0:15 = 2:15 SLIDE

We analysed 37 publications, 9 legislative acts and 2 interviews of intelligence officials to map and understand the existing structures.

The National Security Council and Committee set direction

The national security secretariat and assessment centre is a joint section within the Department of An Taoiseach – which processes and disseminates.

The intelligence agencies are Garda National Crime and Security Intelligence Service and Irish Military Intelligence Service.

They collect, process and disseminate information.

1:30 + 0:30 + 0:15 + 0:35 = 2:50 SLIDE

This wire diagram is the result of our research and is depicted graphically on the poster – which we encourage you to digest afterwards.

On the advice of experts we have redacted confidential components.

The wire diagram maps the agencies, official & informal links and known partners and tasks.

1:30 + 0:30 + 0:15 + 0:35 + 0:20 = 3:10 SLIDE

The key military and police structures are depicted on-screen.

As the “**security services**”, security & intelligence service is the primary internal agency, having robust legislative and resource supports.

We identify three formative historical events as crucial to understanding the Irish approach.

Then G2’s importance during The Emergency gave way to distrust following the Arms Crisis

This has arguably persisted since, with J2 downplaying its significant role in state security – per **Mulqueen (2013) and Heney (2020)**.

We assess the budding Joint Cyber Defence Command as a likely future key enabler for EW and SIGNINT.

Operation Enchant highlights the constructive security relationship between the Ordnance Corps and SDU – through the sharing of technical IED intelligence.

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Next we sought to identify lacunae in the structures.

To do so we considered typical delineations of intelligence functions, settling on defence and combat intelligence, as described by **Davies (2016), Strachan-Morris (2024) and Mulqueen (2008)**.

Central to our analysis is the consideration of defence intelligence as the function which informs policy.

It contrasts with combat intelligence – which supports tactical operations.

Using the PMESII structure, we analysed Ireland’s sources and agencies for defence and combat intelligence.

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The purpose of the qualitative depiction of Ireland’s SANDA is to highlight that while Ireland has numerous sources and agencies, only a small subset pertain to political and military intelligence.

Click for circle

These are the components of defence intelligence.

This allows us to provide our conclusions pertaining to national structures.

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From our research, it is clear that Security & Intelligence Service has superior legislative and internal power,

while focusing on national combat intelligence – rather than defence intelligence

We identify a lacuna, whereby IMIS and NSAC quietly performs many of the roles traditionally assigned to a civilian national and overseas defence intelligence agency – without the overt legislative mandate.

Our governmental structures are not fundamentally different from international norms – indeed Ireland's bears a striking similarity with the UK and New Zealand per **Gill (2006)**.

Their bodies are the national security council, joint intelligence committee and national security secretariat respectively.

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We took this analysis a step further.

This slide depicts our considerations regarding existing legislation in the context of the intelligence cycle and age.

The last truly big change was the **2009 Surveillance Act**, which was driven by the murder of Shane Geoghegan in Limerick.

Thankfully no equivalent tragedy has forced the next leap, but our research still found a key lacuna: **1993 Interception Act**.

It remains a major structural bottleneck for collection.

We therefore present three structural gaps, which rarely get discussed, as follows.

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Ireland's national security structures *are* fit for purpose and as **Romin** shall show, almost identical to the UK, Sweden and New Zealand.

However, Ireland has no legislative direction via a national security strategy.

This is at odds with international practice

Without legislative direction, the agency heads themselves decide on priorities – which can overlap

The **2009 Act** grants significant powers – however nobody officially sets the threats for which these intrusive powers can be used.

This is a democratic weakness.

In lieu of a National Security Strategy, governance is affected through the National Security Committee.

Interestingly the absence of a national security agency can stop the transfer of confidential leads and technical information to Ireland.

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On paper the top table looks balanced

However Civil-service posts are filled by talented generalists on rotation, as illustrated during a recent DOD briefing.

The actual career intelligence professionals are back-bench supporters at the Committee or feeding papers from the Secretariat.

They are not decision-makers.

This shows how far Ireland's structures diverge from the very UK model we clearly have adopted.

Furthermore, the rotation of appointments – which the military is familiar with – exist also within Garda security and intelligence.

In the UK, the civil side has its own deep professional stream, culminating with the National Security Adviser.

Ireland has no equivalent career path and no dedicated senior intelligence adviser.

Professional depth is therefore lopsided.

It quietly weakens the possible depth of the healthy friction – per **Cohen in 2002** – and civilian oversight of the whole system.

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Ireland's interception, surveillance and data regimes were written for older technologies.

The **1993 Act** was drafted for post and SMS;

the **2009 Act** for devices and surveillance.

Crucially, legislation is silent on metadata.

Parking ethics and oversight for a moment, there is no Irish statutory analogue to bulk, data-led programmes, like PRISM or XKeyscore

Barry, Shatter and McIntyre critique the existing legislation.

Ultimately, as shown by **Coffey in 2024**, evidence can struggle to make it to court.

In 2013 **Snowden** revealed that many services reversed the order from 'find the target to get the data' to 'start with the data to find the target' per **Petit in 2020**

This is elucidated by **Sylvia in 2025** through the IDF's use of The Gospel and Lavender in Gaza for target generation.

In **2018 Gill and Phythian** put it bluntly: any rule-of-law country has to define three things:

- what we are allowed to do with metadata,
- how long we may hold it, and
- how a lead moves lawfully within the security services

We therefore assess that this gap hinders Ireland's responses to threats.

The good news is that the current Programme for Government explicitly commits to fixing this.

Romin shall now consider the evolution of the contemporary threat, how Ireland's immature approach contrasts with peers' Janowitzian model and the legislative considerations to data collection.

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